

		Pursuant to Code of Civil Procedure sections 1985.3 and 1987.1, the Motion to Quash the subpoenas at issue is GRANTED. The Court finds that the subpoenas issued are not reasonably particularized in that they seek financial information that is not relevant to the resolution of the issues presented in this case. (<i>Calcor Space Facility, Inc. v. Superior Court</i> (1997) 53 Cal.App.4th 216, 222 (1997), <i>as modified</i> (Mar. 7, 1997).) Plaintiffs did not oppose this motion and therefore proffered no evidence establishing otherwise. Based on the non-opposition, the Court may “deem [plaintiffs] to have abandoned the issues” or “claims” addressed in the moving papers. (<i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20.) The non-opposition is considered an implied concession to the merit of Defendants’ arguments presented in the motion. (<i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20; <i>DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566, <i>as modified</i> (Jan. 25, 2000) [“By failing to argue the contrary, plaintiffs concede this issue.”]; <i>Glendale Redevelopment Agency v. Parks</i> (1993) 18 Cal.App.4th 1409, 1424 [holding that “by failed to address” an issue, the issue is “impliedly concede[d].”]; and <i>Westside Center Associates v. Safeway Stores 23, Inc.</i> (1996) 42 Cal.App.4th 507, 529 [“Its failure to address the threshold question of intent effectively concedes that issue and renders its remaining arguments moot.”].) The Motion is GRANTED. Defendants’ request for sanctions is GRANTED in the reduced amount of \$1,500 (3 hours at \$500/hour). The Court sets an OSC re: Default for October 22, 2026 at 10:30 am in C34. No answers have been filed in this case. Defendants to give notice.
12.	30-2022-01296538 Burke vs. Grosse	1. Motion to Enforce Settlement 2. Order to Show Cause re: Dismissal on Settled Case Plaintiff Camille Burke (“Plaintiff”) moves for an order enforcing a settlement and release agreement between herself and defendant Michael Bradley (“Defendant”), entering judgment in favor of Plaintiff against Defendant, and awarding Plaintiff \$2,119.95 in costs and in attorney’s fees incurred in bringing this motion. Code of Civil Procedure section 664.6 provides: If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. The Settlement and Release Agreement provides that Defendant shall pay Plaintiff a total of \$20,000 with \$5,000 due within two weeks of all counsel receiving a fully executed version of the agreement and six payments of \$2,500 every 30 days thereafter. The Agreement further provides that the parties agree that the Court shall maintain jurisdiction of this matter to further the settlements reached to the fullest extent possible under Code of Civil Procedure section 664.6. Exhibit A to the Agreement provides that Plaintiff and Defendant agree that in the event of default and Defendant’s failure to cure within three business days, judgment shall be entered in favor of Plaintiff and against Defendant for

		the sum of \$20,000 less a credit for any settlement payments made by Defendant and Plaintiff shall be entitled to recover reasonable attorney’s fees and costs incurred in seeking entry of judgment. A fully executed version of the Agreement was provided to Defendant on December 4, 2025. However, aside from the initial \$5,000 payment, Defendant has failed to make the required installments. The Court finds that there is a valid and binding settlement agreement between Plaintiff and Defendant, they agreed to all material terms, and the settlement agreement is in writing and signed by both parties. In light of Defendant’s default, Plaintiff is entitled to the entry of judgment in the amount of \$15,000. The Court further finds Plaintiff’s request for costs and attorney’s fees in the amount of \$2,119.95 is reasonable and must be awarded pursuant to the parties’ agreement. In light of the above, the Motion to Enforce Settlement is GRANTED. Moving party to give notice.
13.	30-2025-01524971 Chegge vs. Chegge	1. Case Management Conference 2. Motion to Deem Facts Admitted 3. Motion to Deem Facts Admitted 4. Motion to Set Aside/Vacate Default <u>MOTIONS TO DEEM FACTS ADMITTED (ROAs 71 & 79):</u> (ROA 71) Plaintiff Julie Njambi Chegge (the “Plaintiff”), moves for an Order—(1) deeming Plaintiff’s First Set of Requests for Admission, Numbers 1 through 29, to Defendant Elaine Muthoni Chegge (the “Defendant”) admitted, and (2) for reimbursement/sanctions against this Defendant in the amount of no less than one thousand nine hundred eighty-five dollars (\$1,985.00.)—under CCP§§ 2020.030, and 2033.280. (ROA 79) Plaintiff Julie Njambi Chegge moves for an Order—(1) deeming Plaintiff’s First Set of Requests for Admission, Numbers 1-29, to Defendant Kariuki Quez Chegge admitted, and (2) for reimbursement/sanctions against this Defendant in the amount of no less than one thousand nine hundred eighty-five dollars (\$1,985.00)—under Code of Civil Procedure sections 2020.030, 2030.010, and 2033.280. <i>These unopposed Motions are DENIED as premature.</i> Pursuant to Code Civ. Proc., § 2033.020 (b), “A plaintiff may make requests for admission by a party without leave of court at any time that is 10 days after the service of the summons on, or appearance by, that party, whichever occurs first.” Here, the Defendants were served with the summons and Complaint on 11/25/2025 and 12/1/2025, respectively. However, both were served with the RFAS on 12/2/2025. That is earlier than 10 days after the service of summons. Furthermore, as to Defendant Kariuki Quez Chegge aka Mark Kariuki Quez Chegge, he is in default, and “out of court”. Entry of defendant's default instantaneously cuts off its right to appear in the action. The defendant is “out of court.” It has no right to participate in the proceedings until either (a) its default is set aside (in which event, they may respond to the complaint), or (b) a default judgment is entered (in which event, they may appeal). [<i>Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc.</i> (1984) 155 CA3d 381, 385-386] Entry of default deprives the court of jurisdiction to consider any motion other than a motion for relief from default. [<i>W.A. Rose Co. v. Mun.Ct. (FitzSimmons)</i> (1959) 176